

Nafasi, Inc. Terms of Service

****Effective Date:**** November 19, 2025

****Last Updated:**** November 19, 2025

1. Introduction and Agreement to Terms

Welcome to nafasi.co and all of its subdomains (the "Website"), operated by Nafasi, Inc., a technology consulting company specializing in AI-driven solutions for small-to-medium businesses (SMBs) and marginalized communities ("Company," "we," "us," "our," or "Nafasi").

These Terms of Service ("Terms," "Agreement," or "ToS") constitute a legally binding agreement between you and Nafasi, Inc. that governs your access to and use of our Website, including all content, services, products, and features offered through the Website (collectively, the "Service"). This Agreement also governs any consultation services, project work, products, and professional services we provide to you.

****By accessing, browsing, or using the Website in any way, including creating an account, submitting a contact form, requesting a consultation, making a payment, or downloading content, you acknowledge that you have read, understood, and agree to be bound by all terms and conditions of this Agreement.**** If you do not agree to these Terms, you must immediately cease using the Website and our Services.

This Agreement is effective when you first access the Website and remains in effect until terminated as described in Section 9.

2. Acceptance of Terms and Modifications

2.1 Binding Agreement

By using the Website or Services, you represent and warrant that:

- You are at least 18 years of age
- You have the legal authority to enter into a binding agreement
- You agree to be bound by these Terms
- You will comply with all applicable laws and regulations in your jurisdiction
- Your use of the Service is not prohibited by law or court order

2.2 Right to Modify Terms

Nafasi reserves the right to modify these Terms at any time in our sole discretion. We will notify you of material changes through:

- A notice posted prominently on our Website with an updated "Last Updated" date
- An email notification to your registered email address (if you have an account)
- A banner or popup alert on the Website

****Your continued use of the Website or Services after the posting of modifications constitutes your acceptance of the updated Terms.**** We recommend that you review these Terms periodically to ensure you understand the current terms governing your use. If you object to any modifications, your sole recourse is to cease using the Website and the Services.

2.3 Precedence

If any conflict exists between these Terms and any other agreement you have with Nafasi, the following order of precedence applies:

1. Service-specific statements and addendums (e.g., consulting agreements)
2. These Terms of Service
3. The Privacy Policy

3. User Conduct and Restrictions

3.1 Acceptable Use

You agree to use the Website and Services only for lawful purposes and in a way that does not infringe upon the rights of others or restrict their use and enjoyment of the Website. Prohibited behavior includes:

Illegal Activities:

- Violating any applicable local, state, national, or international law or regulation
- Engaging in fraudulent, deceptive, or misleading conduct
- Creating, distributing, or assisting in the distribution of malware, spyware, or other harmful code
- Hacking, phishing, or attempting to gain unauthorized access to systems
- Money laundering or financing of illegal activities
- Child exploitation or abuse

Harmful Conduct:

- Transmitting threats, harassment, hate speech, or abusive content
- Defaming, libeling, or damaging the reputation of any person or entity
- Creating multiple accounts to circumvent our policies or terms
- Impersonating any person or organization
- Stalking, doxing, or engaging in coordinated harassment campaigns

Spam and Abuse:

- Sending unsolicited commercial messages or advertisements
- Posting repetitive, unwanted, or spam content
- Overloading servers with requests or denial-of-service (DoS) attacks
- Bot scraping or automated harvesting of data without permission
- Interfering with the normal operation of the Website

Content Restrictions:

- Uploading, posting, or transmitting illegal, obscene, or sexually explicit content
- Sharing intellectual property that you do not own or have the right to share
- Including links to malicious websites or content
- Reverse engineering, decompiling, or attempting to derive source code
- Attempting to circumvent security measures or access restrictions

3.2 Account Responsibilities

If you create an account on our Website, you are responsible for:

- Maintaining the confidentiality of your login credentials (username and password)
- All activities and transactions that occur under your account
- Immediately notifying us if you suspect unauthorized access
- Accepting full responsibility for the consequences of credential sharing
- Complying with all applicable laws while using your account

Nafasi is not liable for unauthorized access resulting from your failure to maintain confidential credentials or from your breach of this provision.

3.3 User-Generated Content

If you submit, post, or transmit any content through the Website (including comments, feedback, project briefs, or attachments), you:

- Represent that you own or have obtained all necessary rights to the content
- Grant Nafasi a non-exclusive, royalty-free, perpetual license to use, reproduce, modify, and display the content for our business purposes

- Warrant that the content does not infringe any third-party intellectual property rights
- Assume full responsibility for the accuracy and legality of the content
- Release Nafasi from any liability related to your content

Nafasi may remove or restrict access to content that violates these Terms at any time, without notice.

3.4 Monitoring and Enforcement

Nafasi reserves the right to:

- Monitor, review, and investigate Website usage and user conduct
- Suspend or terminate accounts that violate these Terms
- Preserve evidence of violations for legal proceedings
- Cooperate with law enforcement investigations
- Pursue legal action against users who violate these Terms

We are not obligated to monitor content but may do so at our discretion.

4. Intellectual Property Rights

4.1 Website Content Ownership

All content on the Website, including but not limited to text, graphics, logos, images, audio clips, video clips, digital downloads, data compilations, and software ("Website Content"), is the exclusive property of Nafasi, Inc. or its content suppliers and is protected by United States and international copyright laws, trademark laws, and other intellectual property laws.

The "Nafasi" name, logo, design elements, color scheme, and associated brand identity are trademarks and service marks of Nafasi, Inc. All rights reserved.

4.2 Limited License

Subject to your compliance with these Terms, we grant you a limited, non-exclusive, non-transferable, revocable license to:

- Access and view Website Content for your personal, non-commercial use
- Download individual items of Website Content for personal reference
- Print one copy of Website Content for your personal use

This license does not permit you to:

- Modify, adapt, translate, or create derivative works of Website Content
- Republish, resell, or redistribute Website Content
- Remove any copyright notices or proprietary markings
- Use Website Content for commercial purposes without authorization
- Frame or deep-link to Website Content
- Combine Website Content with other materials or services

4.3 Third-Party Content

The Website may contain third-party content, including:

- Links to third-party websites and services
- Embedded content from social media platforms
- Licensed images or fonts from third-party providers
- Plugins or integrations developed by third parties

Nafasi does not endorse, guarantee, or assume responsibility for third-party content. Your interaction with third-party content is governed by their terms of service and privacy policies, not these Terms.

4.4 Feedback and Suggestions

If you provide suggestions, ideas, feedback, or improvements regarding our Website, Services, or

products ("Feedback"), you grant Nafasi a non-exclusive, royalty-free, perpetual, irrevocable right to use, implement, and commercialize your Feedback without compensation or attribution. You warrant that your Feedback does not infringe any third-party intellectual property rights.

4.5 Client Work and Deliverables

For consulting services and project work:

- ****Intellectual Property Created:**** Unless otherwise specified in a separate Service Agreement, intellectual property created by Nafasi specifically for your project ("Work Product") becomes your exclusive property upon final payment.
- ****Nafasi Methodology:**** Nafasi retains all rights to its general methodologies, templates, processes, and intellectual property used in service delivery (not custom-created for you).
- ****Attribution:**** You may display Nafasi work samples and case studies only with our written permission and appropriate attribution.

Detailed terms regarding intellectual property ownership will be specified in service-specific agreements.

5. Disclaimer of Warranties

5.1 "AS-IS" Provision

THE WEBSITE AND SERVICES ARE PROVIDED ON AN "AS-IS" AND "AS-AVAILABLE" BASIS. NAFASI EXPRESSLY DISCLAIMS ALL WARRANTIES, EXPRESS OR IMPLIED, INCLUDING:

- Warranty of merchantability
- Warranty of fitness for a particular purpose
- Warranty of title
- Warranty of non-infringement
- Warranty of accuracy or completeness
- Warranty of reliability or availability
- Warranty that services will be uninterrupted or error-free
- Warranty that defects will be corrected
- Warranty of quality or performance

5.2 No Representation

We do not represent or warrant that:

- The Website will meet your expectations or requirements
- The Website will be available at all times without interruption
- Website Content is accurate, complete, or current
- Any errors or defects will be corrected
- The Website is free from viruses, malware, or other harmful components
- The Website will operate without interruption or errors

5.3 Third-Party Services

We are not responsible for:

- The accuracy, completeness, or reliability of third-party services we integrate (Stripe, Supabase, Calendly, OpenAI, CRM platforms, etc.)
- Service interruptions or failures of third-party providers
- Data loss, security breaches, or unauthorized access by third parties
- Compliance by third parties with applicable laws

5.4 User Responsibility

Your use of the Website and Services is entirely at your own risk. You assume full responsibility for:

- Determining whether the Services are suitable for your needs
- Protecting your device from malware and security threats
- Maintaining backups of your data
- Compliance with applicable laws in your jurisdiction

5.5 Medical and Professional Disclaimer

The Website is not intended to provide medical, legal, financial, or professional advice. Information provided by Nafasi is for informational and educational purposes only. You should not rely solely on our Website or Services for professional advice and should consult with qualified professionals (doctors, lawyers, accountants, etc.) for matters requiring professional expertise.

6. Limitation of Liability

6.1 Excluded Damages

TO THE FULLEST EXTENT PERMITTED BY LAW, IN NO EVENT SHALL NAFASI, ITS OFFICERS, DIRECTORS, EMPLOYEES, AGENTS, OR CONTENT PROVIDERS BE LIABLE FOR ANY:

- Indirect, incidental, special, consequential, punitive, or exemplary damages
- Loss of profits, revenue, business opportunities, or goodwill
- Loss of data, information, or productivity
- Cost of substitute services or goods
- Interruption of business or operations
- Damages arising from your reliance on Website Content or Services
- Damages arising from third-party actions or content
- Any other damages, however caused and under any theory of liability

This limitation applies even if Nafasi has been advised of the possibility of such damages.

6.2 Liability Cap

Except where prohibited by law, Nafasi's total cumulative liability for any claims arising out of or related to these Terms or your use of the Website and Services shall not exceed the amount you have paid to Nafasi in the 12 months preceding the claim, or \$100, whichever is less. If you have not paid any fees, liability is limited to \$50.

6.3 Exceptions

These limitations do not apply to:

- Your indemnification obligations under Section 8
- Violations of intellectual property rights
- Claims that cannot be limited under applicable law
- Damages arising from gross negligence, fraud, or willful misconduct
- Claims that cannot be excluded under applicable consumer protection laws

7. Indemnification

You agree to indemnify, defend, and hold harmless Nafasi, Inc., its affiliates, officers, directors, employees, agents, and third-party providers from any claims, damages, losses, liabilities, costs, and expenses (including reasonable attorneys' fees) arising from or related to:

- Your use of the Website or Services
- Your violation of these Terms
- Your violation of any applicable law or regulation
- Your infringement of any third-party intellectual property rights
- Your user-generated content
- Your interactions with other users or third parties

- Claims arising from your account or credentials
- Your failure to comply with our policies

You will cooperate fully with Nafasi in the defense of any indemnified claim.

8. Termination

8.1 Termination by You

You may terminate your account at any time by:

- Logging into your account and selecting the account deletion option, or
- Contacting us at admin@nafasi.co with a written request to delete your account

Upon account termination:

- Your access to the Website will be immediately revoked
- Any active transactions will be completed according to these Terms
- Non-refundable fees are retained by Nafasi
- Your data will be deleted within 90 days, except where retention is required by law

8.2 Termination by Nafasi

Nafasi may suspend or terminate your account or access to the Website immediately and without notice if:

Violation of Terms:

- You materially violate these Terms or any other agreement with Nafasi
- You engage in conduct that Nafasi reasonably determines violates law or policy
- You use the Website for illegal or unauthorized purposes

Payment Failures:

- Payments are declined or fail
- You reverse or dispute charges improperly
- Your account is delinquent for more than 30 days

Harmful Behavior:

- You harass, threaten, or abuse other users or Nafasi staff
- You engage in spam, phishing, or security attacks
- You post illegal, obscene, or defamatory content
- You attempt to gain unauthorized system access

Business Reasons:

- Nafasi ceases operations or specific services
- Nafasi determines continuation poses business or legal risk
- Discontinuation of services in your geographic region

8.3 Effects of Termination

Upon termination:

- Your license to use the Website and Services immediately ceases
- Any outstanding payments remain due and payable
- Sections of these Terms that are intended to survive termination (including Limitation of Liability, Indemnification, Governing Law, Dispute Resolution) continue in effect
- We will not refund prepaid fees unless otherwise required by law

8.4 Survival

The following sections survive termination of this Agreement:

- Intellectual Property Rights (Section 4)

- Disclaimer of Warranties (Section 5)
- Limitation of Liability (Section 6)
- Indemnification (Section 7)
- Governing Law and Dispute Resolution (Section 11)
- Entire Agreement (Section 13)

9. Payment and Billing

9.1 Fees and Pricing

Nafasi offers various services and consultation options with different pricing models. All fees are:

- Listed in USD (United States Dollars)
- Exclusive of applicable taxes unless otherwise stated
- Subject to change with 30 days' written notice
- Non-refundable except as expressly provided in these Terms or applicable law

9.2 Payment Processing

Payments are processed through Stripe, our authorized payment processor. By providing payment information, you:

- Authorize Nafasi to charge your payment method for services rendered
- Represent that you are the authorized user of the payment method
- Agree to pay all charges incurred
- Consent to secure storage of payment information for future transactions

9.3 Subscription Services

If you subscribe to recurring services:

- **Billing Cycle:** Services are billed according to the subscription plan selected (monthly, quarterly, annual, or custom)
- **Auto-Renewal:** Subscriptions automatically renew unless cancelled
- **Cancellation:** You may cancel at any time by contacting admin@nafasi.co
- **Charges:** You will be charged on the same day of each billing cycle
- **Price Changes:** We may increase subscription prices with 30 days' notice; cancellation is your remedy

9.4 Deposits and Retainers

Some services require deposits or retainers:

- Deposits are non-refundable unless specified otherwise in a service agreement
- Deposits are credited against the final service cost
- Unused retainers may be refunded (less 10% administrative fee) if work is not initiated within 90 days
- Retainers expire 12 months after receipt; contact us to extend

9.5 Invoices and Payment Terms

- Invoices are due upon receipt unless otherwise agreed
- Late payments accrue interest at the rate of 1.5% per month (or the maximum rate permitted by law)
- Non-payment may result in service suspension or account termination
- Nafasi may pursue collection action for unpaid balances, including legal fees

9.6 Failed Payments

If a payment fails:

- We will retry payment using your saved payment method
- You will receive notification of the failure
- Service may be suspended if payment is not received within 5 business days
- Repeated payment failures may result in account termination

9.7 Refund Policy

Refunds are available under the following circumstances only:

- ****Defective Services:**** If Nafasi fails to provide contracted services, a proportional refund may be issued
- ****Legal Requirement:**** If required by law (e.g., CCPA deletion request)
- ****Service Cancellation:**** If Nafasi cancels a service before completion, a refund of unused fees is issued

Refunds are NOT available for:

- Services that have been partially or fully rendered
- Changes in mind or dissatisfaction
- Deposits or retainers (except as noted above)
- Consulting hours that have been used
- Completed project deliverables

Refund requests must be submitted in writing within 30 days of the charge.

9.8 Taxes

You are responsible for paying all applicable taxes related to your use of our Services, including:

- Sales and use taxes
- Value-added taxes (VAT)
- Goods and services taxes (GST)
- Other consumption taxes

Nafasi will collect and remit taxes as required by law. Tax-exempt organizations must provide valid tax documentation.

10. Governing Law and Dispute Resolution

10.1 Governing Law

These Terms are governed by and construed in accordance with the laws of the State of California, without regard to its conflict of law principles. You consent to the exclusive jurisdiction of the state and federal courts located in California for any disputes.

****Note:**** If you are a California resident, you may have additional consumer protection rights under California law.

10.2 Dispute Resolution Process

Before pursuing legal action, you agree to attempt good faith resolution:

Step 1: Informal Resolution

- Contact us at admin@nafasi.co describing the dispute in detail
- We will respond within 30 days with our position
- Good faith negotiation will occur for an additional 30 days

Step 2: Mediation

If informal resolution fails, either party may initiate non-binding mediation by:

- Submitting a written mediation request to admin@nafasi.co
- Participating in mediation with a mutually agreed neutral mediator
- Sharing mediation costs equally

- Mediation will occur in California via video conference or phone

Step 3: Litigation

If mediation is unsuccessful, you may pursue legal action in the courts of California.

10.3 Class Action Waiver

****You and Nafasi agree that any dispute shall be pursued individually, not as a class action.**** You waive the right to participate in any class action, class arbitration, or representative action against Nafasi. Claims must be brought in your individual capacity, not on behalf of a group.

10.4 Limitation Period

Any legal action or proceeding must be commenced within one (1) year after the cause of action arises, or it will be forever barred.

10.5 Injunctive Relief

You acknowledge that breach of certain provisions of these Terms may cause irreparable harm for which monetary damages are inadequate. Nafasi may seek equitable relief (including injunction) in addition to all other remedies available at law or in equity.

11. Privacy Policy

Your use of the Website is also governed by our Privacy Policy, which explains how we collect, use, and protect your personal information. Please review the Privacy Policy carefully. In case of conflict between the Privacy Policy and these Terms, the Privacy Policy controls regarding privacy matters.

****Privacy Policy:**** <https://www.nafasi.co/privacy-policy>

12. Third-Party Services and Links

12.1 Third-Party Integrations

Our Website integrates with third-party services, including:

- Payment processor (Stripe)
- Hosting and database (Supabase)
- Email services (SendGrid, Mailchimp)
- Scheduling (Calendly)
- CRM platforms (HubSpot, Salesforce, Pipedrive)
- Analytics (Google Analytics)
- AI services (OpenAI)

Your use of these services is subject to their terms of service and privacy policies. Nafasi is not responsible for third-party services.

12.2 Third-Party Links

The Website may contain links to external websites. We do not endorse or assume responsibility for:

- Third-party website content
- Security practices of third parties
- Compliance with laws
- Privacy practices
- Accuracy or completeness of information

12.3 No Endorsement

Links or references do not constitute endorsement. Use of third-party services is entirely at your own risk.

13. Accessibility

Nafasi is committed to making the Website accessible to individuals with disabilities. If you encounter accessibility barriers or have questions about accessibility, please contact us at admin@nafasi.co. We will work to address accessibility concerns promptly.

14. Warranties Regarding Your Information

You represent and warrant that:

- Any information you provide is accurate, complete, and truthful
- You own or have obtained all necessary rights to information you submit
- Your use of the Website does not violate any third-party rights
- You are not subject to sanctions or export restrictions
- You are not located in a jurisdiction prohibited by U.S. law
- You are not on any sanctions list (OFAC, ITAR, etc.)

15. General Provisions

15.1 Entire Agreement

These Terms, together with the Privacy Policy and any service-specific agreements, constitute the entire agreement between you and Nafasi regarding your use of the Website and Services, superseding all prior and contemporaneous agreements, understandings, and negotiations.

15.2 Severability

If any provision of these Terms is found to be unenforceable or invalid, that provision will be modified to the minimum extent necessary to make it enforceable, and the remaining provisions will continue in full effect.

15.3 Waiver

Our failure to enforce any provision does not constitute waiver of that provision or of any other provision. Nafasi must affirmatively waive in writing to waive any right or provision.

15.4 Assignment

These Terms are binding on you and your heirs, successors, and assigns. You may not assign these Terms without Nafasi's written consent. Nafasi may assign these Terms to any successor or affiliate.

15.5 Relationship of Parties

Nothing in these Terms creates a partnership, joint venture, agency relationship, or employment relationship between you and Nafasi.

15.6 Independent Contractors

Any consulting services provided by Nafasi are rendered by independent contractors. Nafasi employees or contractors are not your employees, and you are not responsible for their compensation, benefits, or withholding.

15.7 Notices

All notices, requests, and other communications required under these Terms should be sent to:

Nafasi, Inc.

Email: admin@nafasi.co

Website: <https://www.nafasi.co>

We will provide notices to you via email at the address associated with your account or via conspicuous posting on the Website.

15.8 Force Majeure

Nafasi is not liable for any failure or delay in performing obligations due to causes beyond reasonable control, including:

- Natural disasters, acts of God
- Wars, terrorism, civil unrest
- Government actions or regulatory changes
- Internet outages or provider failures
- Pandemics or epidemics

16. Specific Services Terms

16.1 Consultation Services

If you book a consultation or meeting through our Website:

- **Scheduling:** Consultations are scheduled through Calendly and confirmed via email
- **Cancellation:** Cancellations must be made 24 hours in advance
- **No-Show Policy:** Failure to attend scheduled consultations without notice may result in forfeiture of deposits
- **Recording:** Consultations may not be recorded without written consent
- **Confidentiality:** Both parties agree to maintain confidentiality of sensitive business information

16.2 AI Chatbot Services

Our AI chatbot is powered by OpenAI and is designed to:

- Answer frequently asked questions
- Qualify leads and collect contact information
- Direct you to appropriate resources

Limitations:

- The chatbot is not a substitute for professional advice
- Responses may not be accurate or complete
- Conversations are logged and reviewed for improvement
- We do not guarantee chatbot availability or accuracy

16.3 Project-Based Services

For consulting projects and deliverables:

- **Scope of Work:** Detailed scope is defined in separate Service Agreements
- **Timeline:** Timelines are estimates and subject to change
- **Revisions:** A limited number of revisions are typically included; additional revisions may incur additional fees
- **Acceptance:** Client approval of deliverables is required
- **Payment:** Payment upon delivery or per the agreed-upon payment schedule

16.4 Subdomains

This Agreement applies to all subdomains of nafasi.co, including but not limited to:

- app.nafasi.co
- admin.nafasi.co
- blog.nafasi.co
- Any future subdomains

17. Contact Information

For questions, concerns, or disputes regarding these Terms of Service, please contact:

Nafasi, Inc.

Email: admin@nafasi.co

Website: <https://www.nafasi.co>

We commit to responding to inquiries within 5-7 business days.

18. Acknowledgment

BY USING THE WEBSITE AND SERVICES, YOU ACKNOWLEDGE THAT:

- You have read and understood these Terms of Service
- You agree to be bound by all terms and conditions
- You understand the limitations on our liability
- You have adequate remedies under these Terms
- You waive any claims not brought within one year

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Engineering Equity - Building technology that serves everyone.

Appendix A: Definitions

- ****Agreement:**** These Terms of Service
- ****Company:**** Nafasi, Inc., a technology consulting company
- ****Services:**** All offerings, products, content, and features provided through the Website
- ****Website:**** [nafasi.co](https://www.nafasi.co) and all subdomains
- ****User:**** Any person accessing or using the Website
- ****Content:**** Text, images, videos, code, data, and other materials on the Website
- ****Work Product:**** Intellectual property created by Nafasi for your specific projects
- ****Confidential Information:**** Non-public information shared between parties

****Version:**** 1.0

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